

The board, however, stressed that priority could be based only on earlier applications filed by the applicant of the European application or by his predecessor in title. Moreover, only such applications could meet the further requirement, derivable from Art. 87(4) EPC 1973, that an application giving rise to the priority right had to be the first application by the applicant or by his predecessor in title in respect of the invention. The inventor was not relevant. Applications filed by various applicants figured alongside one another as state of the art within the meaning of Art. 54(2) or Art. 54(3) EPC 1973. The board also rejected the respondent's argument that the economic aspect was relevant to the requirements relating to priority and that the two wholly owned subsidiaries of the same parent company were not independent of each other in view of their association through the parent. Legal acts were in principle attributable to the (legal) person who had performed them. Exceptions to this needed a legal basis, which did not exist in the law relating to priority.

In T 788/05 the proprietor had been co-applicant in a previous European application D1 with an earlier priority date than that of the patent in suit. The appellant (opponent) argued that since the proprietor was also designated as applicant in D1, it had to be regarded as the "person" referred to in Art. 87(1) EPC 1973 regardless of the designation in D1 of a second applicant. Since, moreover, the invention was the same in both documents, D1 had to be considered as the first application. Therefore the priority claimed for the application in issue was not valid and D1 was prior art under Art. 54(2) EPC 1973.

The board held that the term "a person" in Art. 87(1) EPC 1973 (or "an applicant" in Art. 88(1) EPC 1973) implied that the applicant was the same for "the first application" (or "previous application" in Art. 88(1) EPC 1973) and for the later application for which a priority right was claimed. In the case of D1, the priority right belonged to the two applicants simultaneously, unless one decided to transfer his right to the other, who then became his successor in title and this before the filing of the later application. No evidence of such a transfer had been submitted. Since the application in issue was only filed by one applicant, D1 could not represent the "first application" within the meaning of Art. 87(1) EPC 1973. The priority date was valid and D1 represented state of the art under Art. 54(3) EPC 1973. The disclaimer introduced during the examination proceedings to restore the novelty of claim 1 vis-à-vis D1 was also accepted by the board.

In T 1933/12 the application underlying the patent was filed by the patent proprietors A1 and A2 and claimed the priority of D0, also filed by A1 and A2. Prior to D0, however, A2 had filed application D1, whose priority was not claimed but which undisputedly disclosed a gearbox drive in accordance with claim 1 in issue. The patent proprietors argued that D1 could not be considered the first application within the meaning of Art. 87 EPC. Since A2 was the sole applicant for D1 there was no identity of applicant with the patent in suit.

The board disagreed. T 788/05, cited by the proprietors, concerned the opposite case, namely multiple applicants for the priority document but only one for the later European filing. For succession in title – as for first filings by multiple applicants but subsequent applications by only one or some of those applicants – it had to be shown that the priority right held jointly by the multiple earlier applicants had been transferred to the sole applicant or the group of applicants (T 382/07). Art. 87(1) EPC did not exclude the (sole) applicant for the first filing sharing his priority right with a third party by filing a subsequent application

jointly with the latter, but it did require that the applicant for the first filing, or his successor in title, be among the applicants for the subsequent, priority-claiming filing. In such a case, if there was only one additional applicant for the subsequent filing, there was no need to provide proof of the transfer of the priority right to him. In the case at issue, sole applicant A2 for D1 was also one of the applicants for the application leading to the patent, so D1 was the first application (Art. 87(1) EPC). The fact that D0 and D1 designated different inventors made no difference. Some of D0's inventors were also designated as inventors in D1, so it could not be assumed that the two applications derived from two different inventive acts. Most importantly, identity of inventor was not relevant for Art. 87 EPC, which, for the purpose of claiming a right of priority, referred to the applicant (T 5/05).

5. Partial and multiple priorities

In cases where partial or multiple priorities can be validly claimed, the subject-matters of the subsequent application have two or more operative priority dates. In the case of a **partial priority** that part of the subsequent application's subject-matters disclosed in the previous application has the priority date of the previous application; for the remaining part the date of filing of the subsequent application applies. With **multiple priorities**, the priority of two or more previous applications is claimed. In this case, claims in the subsequent application have the priority date of the previous application in which the subject-matter subsequently claimed was disclosed (see also chapter II.D.5.2. below). Multiple priorities may be claimed for any one claim (Art. 88(2), second sentence, EPC), as long as several subject-matters are included (see also chapter II.D.5.3. below, and summary of G 1/15, OJ 2017, A82, in chapter II.D.5.3.2).

5.1. Publications during the priority interval – effect on elements of the European patent application not entitled to priority

As noted by the EPO President in the reasons for the referral in G 3/93 (OJ 1995, 18), on the one hand, it frequently occurs that in subsequent filings new elements and information are added in respect of prior applications of the same applicant and, on the other hand, inventors are often eager to publish the results of their research as soon as possible.

In its ensuing opinion, the Enlarged Board stated that a document published during the priority interval, the technical contents of which correspond to that of the priority document, constitutes prior art citable under Art. 54(2) EPC 1973 against a European patent application claiming that priority, to the extent that such priority is not validly claimed. This also applies if a claim to priority is invalid due to the fact that the priority document and the subsequent European application do not concern the same invention because the European application claims subject-matter not disclosed in the priority document. The Enlarged Board emphasised that the existence of a right of priority depends, inter alia, on the fulfilment of the requirement that the European patent application claiming the right of priority from an earlier application must be "in respect of the same invention" disclosed in the earlier application. Where priority is claimed but cannot be allowed because the essential condition precedent, that the inventions are the same, is not met, there is no right to priority. Consequently, any publication of the contents of a priority document during the priority interval constitutes prior art citable against **elements** of the European application

which are **not entitled to priority**. See the example in G 9/93; see also e.g. T 594/90, T 961/90, as well as the discussion in T 301/87, OJ 1990, 335.

T 131/99 stressed that in this regard there is no difference between dependent and independent claims (see also T 85/87, and T 127/92, which is summarised in the next section).

5.2. Different priorities for different parts of a European patent application

According to Art. 88(3) EPC, if one or more priorities are claimed in respect of a European patent application, the right of priority shall cover only those elements of the European patent application which are included in the application or applications whose priority is claimed. Since, pursuant to Art. 84 EPC, the claims of the European patent application define the matter for which protection is sought and, hence, determine the matter for which priority may be claimed, the term "elements of the invention", referred to in Art. 88(4) EPC, and the term "elements of the European patent application", referred to in Art. 88(3) EPC, are to be considered synonymous. Both an "element of the invention" and an "element of the European patent application" actually constitute subject-matter as defined in a claim of the European patent application (see G 2/98, OJ 2001, 413).

In T 828/93 the board stated that it followed from Art. 88(3) EPC 1973 that different priorities (including no priority, i.e. only the date of the European application) could be conferred on different parts of a European application. It was sufficient to check whether the subject-matter to be compared with the prior art, i.e. the **subject-matter of the independent patent claims**, corresponded to the disclosure of the documents of the priority application as a whole (see Art. 88(4) EPC 1973). Only one (or, as the case may be, no) priority could be conferred on each claimed **subject-matter as a whole**, in so far as the subject-matter was defined by the totality of the given elements. This subject-matter as a whole represented the invention, which either corresponded to the disclosure of a priority application or not.

In T 127/92 priority had been claimed from two German utility models (D1 and D2), which were published during the priority interval. The board held that priority had been validly claimed from D1 for claim 1 and several dependent claims. However, it found that other **sub-claims**, which also contained **elements not disclosed in D1**, could not claim partial priority from D1 for the subject-matter of claim 1 contained in them. On the basis of the principles developed in G 3/93 (OJ 1995, 18), the board concluded that D1 and D2 formed part of the state of the art in respect of these claims and that, consequently, their subject-matter did not involve an inventive step. The patent proprietor therefore deleted them.

See also T 85/87, T 594/90, T 961/90.

5.3. Multiple priorities or partial priority for one claim

Art. 88(2), second sentence, EPC provides that, where appropriate, multiple priorities may be claimed for any one claim. The Enlarged Board of Appeal considered the application of

this provision in G 2/98 (OJ 2001, 413) and in G 1/15 (OJ 2017, A82). Respective summaries are given below.

The following earlier decisions of technical boards are also of interest.

In T 828/93 (see also chapter II.D.5.2. above) the board confirmed that the possibility mentioned in Art. 88(2) EPC 1973 of multiple priorities for any one patent claim related only to instances where, unlike in the case at issue, the claim contained **alternatives** and could therefore be split into **several subject-matters**.

In T 620/94 it became apparent that granted claim 1 covered two alternatives A and B of the invention. Only alternative B was disclosed in the priority document; alternative A was contained only in the subsequent European application. Prior art published during the priority interval rendered obvious alternative A. The patent could thus only be maintained in amended form, i.e. limited to alternative B.

In T 441/93 the patent related to a process for preparing a strain of the yeast *Kluyveromyces*, which comprised transforming *Kluyveromyces* yeast cells. The priority document disclosed a process for the transformation of protoplasts of such yeast. The board concluded that the claims could be divided into two groups: Group A, enjoying priority rights from the previous application and comprising claim 1 in so far as directed to a process for the transformation of *Kluyveromyces* protoplasts, and the related further claims; and Group B, only enjoying the priority of the subsequent European application, and comprising claim 1 in so far as not directed to a process for the transformation of protoplasts, and the related further claims. Consequently, a scientific article published in the priority interval was held to be prior art only as regards the parts of the claimed subject-matter not disclosed in the priority document. See also T 395/95.

In G 2/98 (OJ 2001, 413) the Enlarged Board of Appeal analysed the legislative intention behind Art. 88(2), second sentence, EPC 1973 and concluded that a distinction has to be drawn between the two following cases. The legislator did not want several priorities to be claimable for the **"AND" claim** (e.g. a claim to features A and B, with the first priority document disclosing claim feature A alone and only the second priority document disclosing claim feature B). With regard to the **"OR" claim**, the Enlarged Board drew the following conclusion from the historical documentation relating to the EPC 1973: where a first priority document disclosed a feature A, and a second priority document disclosed a feature B for use as an alternative to feature A, then a claim to A or B could enjoy the first priority for part A of the claim and the second priority for part B of the claim. It was further suggested that these two priorities might also be claimed for a claim directed to C, if the **feature C**, either in the form of a generic term or formula, or otherwise, **encompassed feature A as well as feature B**. The use of a generic term or formula in a claim for which multiple priorities were claimed in accordance with Art. 88(2), second sentence, EPC 1973 was perfectly acceptable under Art. 87(1) and 88(3) EPC 1973, provided that it gave rise to the claiming of a **limited number of clearly defined alternative subject-matters** (see point 6.7 of the Reasons.)

5.3.1 Development of the case law after G 2/98 in respect of generically formulated "OR" claims

In the period that followed G 2/98 (OJ 2001, 413), the above-mentioned proviso of the Enlarged Board in respect of generic "OR" claims gave rise to divergences in the jurisprudence of the boards. These led to a further ruling by the Enlarged Board in G 1/15 (OJ 2017, A82); see also chapter II.D.5.3.2 below).

In some of those cases, subject-matter disclosed in the priority document and falling within the generically formulated claim of the subsequent European application was denied (partial) priority because the terms of the proviso were found not to be met. Such approach could sometimes lead to a "collision" under Art. 54(3) EPC with another member of the same European patent family (particularly in situations involving what is sometimes referred to as a "toxic priority" or "poisonous divisional" – see also T 557/13 of 17 July 2015, OJ 2016, A87, summarised in the next section). In G 1/15 (OJ 2017, A82), the Enlarged Board observed that in a number of decisions the words of the proviso had been understood as a further test to be complied with for a claim to partial priority to be accepted, an interpretation which the Enlarged Board rejected. Accordingly, G 1/15 has overruled the approach taken in T 1127/00, T 1443/05, T 1877/08, T 476/09, and other decisions mentioned in G 1/15, point 2.2 of the Reasons.

However, other decisions issued after G 2/98 acknowledged partial priority in comparable circumstances.

Thus, in T 665/00, the board found that the subject-matter of an alleged public prior use within the priority interval was described in the priority document and also fell within the scope of the claims of the disputed patent, but that the priority document did not necessarily describe all the subject-matters claimed. Referring to Art. 88(3) EPC 1973 and G 2/98 (OJ 2001, 413), the board held that different elements of a patent application could enjoy different priority dates and that this was also applicable to a single claim encompassing alternatives and being, thus, separable into a plurality of subject-matters. Of the different alternatives contained in claim 10 (relating to a powder containing hollow microspheres the specific mass of which was described by the generic term "less than 0.1 g/cm³"), the non-compacted powders containing "Expancel DE" microspheres were covered by the claimed date of priority. The claimed prior use, which came after the priority date and involved a product containing the same "Expancel DE" microspheres, could therefore not be novelty-destroying. See also T 135/01.

The meaning of the proviso of G 2/98 in relation to the "OR" claim situation was the subject of extensive obiter remarks in T 1222/11. According to the board, the condition "provided that it gives rise to the claiming of a limited number of clearly defined alternative subject-matters" should be given a different meaning from that attributed to it in T 1877/08, T 476/09, T 1443/05 and T 1127/00. This condition could not be meant to set out the manner in which the subject-matter of the "OR" claim must be defined. This would, at least in relation to generic terms, be at variance with the disclosure test based on the principle of an unambiguous and direct disclosure (cf. G 3/89, OJ 1993, 117). For the purpose of the assessment required by Art. 88(3) EPC, the board considered that the wording of the